

.MED Sunrise Policy

Details about ICANN's requirements for Rights Protection Mechanisms can be found on the ICANN website at the following link <http://newgtlds.icann.org/en/about/trademark-clearinghouse>.

Rights Protection Mechanisms and the Trademark Clearinghouse

ICANN has established the Trademark Clearinghouse and associated processes and procedures so that the Registry Operator can comply with its obligation to implement Rights Protection Mechanisms.

ICANN has appointed providers, the TMCH Sunrise and Claims Operator(s), to operate the Trademark Clearinghouse. Registry Operator's implementation of the Service has been integrated and tested by Verisign (the Back-end Registry Operator) with the TMCH Sunrise and Claims Operator. Information about the Trademark Clearinghouse and the TMCH Sunrise and Claims Operator can be found at the following link <http://trademark-clearinghouse.com/>.

Sunrise Policy: 60 Day End Date Sunrise

- Scope and Timing:

The scope of this policy meets the requirement of the exemption to Specification 9 contained in the .MED Registry Agreement whereby all domain name registrations in the TLD are registered to, and maintained by, Registry Operator for the exclusive use of Registry Operator and its Affiliates. Any person or entity with one or more domains in the Trademark Clearinghouse at the time of launch of the .MED Sunrise period is permitted, in Medistry's sole discretion, to cause the registration of such domains in .MED. All domains contained in the Trademark Clearinghouse at the time of launch of the .MED Sunrise Period are eligible for registration in the .MED Sunrise Period.

Registry Operator will offer a sixty (60) day End Date Sunrise Period, specifically in relation to Rights Protection Mechanisms. The Sunrise Period allows trademark holders the ability to submit for trademark registrations in the .MED TLD. During the Sunrise Period, only SMD File holders are able to complete a Sunrise registration. Successful Sunrise Registration(s) will be permitted use of the Sunrise Registration, with the Registry Operator listed as the registrant of record.

If more than one Sunrise Application for the same Domain Name meets the eligibility criteria described herein, the Sunrise Applications will be submitted to the Registry Operator's authorized Auction Provider.

- Available Sunrise Registration Periods:

Sunrise Period Registrations may be licensed in yearly increments of no less than one (1) year and no more than ten (10) years, commencing on the date on which the Domain Name is registered. Unless otherwise terminated, such registration will expire on the same day of the month the registration was created.

- Eligible Applicants:

Each Sunrise applicant must meet the qualifications specified by ICANN requirements and detailed in the TMCH Guidelines, as they may change from time to time. Any Sunrise applicant not meeting these requirements will result in rejection or cancellation of the Domain Name.

- **SMD File Requirements:**

The Applicant must provide information required by the TMCH to obtain the SMD File as detailed in Sections 2 and 3 of the TMCH Guidelines. The TMCH then will issue an SMD File to verified applicants. The Sunrise Applicant must submit a valid SMD File along with its Sunrise Application. The Registry Operator will perform verification of the SMD File and confirm that the applied for Label is contained in the SMD File. Where verification of the SMD File fails or the applied for Label is not contained in the SMD File, that Application will be rejected.

- **Registration:**

Unless otherwise stated in this Overview, the Registry Operator, via the Registry Service Provider, will register a Domain Name if:

- The Domain Name Label meets the requirements set out below;
- The Domain Name Label and the information contained in the Registrar's request meet the requirements in the Registrar Terms and Conditions;
- The Domain Name Label is available;
- The Registrar is in good standing with the Registry; and
- The Applicant has paid all fees required to complete the registration.

- **Domain Name Label Requirements:**

Registry Operator, via Registry Service Provider, will not accept a Sunrise Application unless the applied-for Domain Name meets the applicable requirements as defined in RFC 1035 and RFC 1123, including the following technical and syntax requirements. The Domain Name Label must:

- if ASCII, consist exclusively of the letters A-Z (case insensitive), the numbers 0-9, and hyphens;
- if non-ASCII (e.g., IDN), consist of language scripts offered by the Registry (as specified on the Registry Website);
- not begin or end with a hyphen;
- not exceed 63 characters;
- contains at least one character; and

- not contain hyphens, except where two consecutive hyphens (-) are used in the 3rd and 4th positions, when preceded by "xn" and followed by a label that corresponds with an IDN containing characters.

- **SLD Blocked Domains:**

Applications may be accepted for domain names appearing on the SLD block list but may not be permitted to function in the DNS.

Sunrise Applicant Notification:

Notification to Sunrise applicants will be as follows:

- At the end of Sunrise, the Registry Operator will notify the sponsoring Registrar of a Sunrise Registration.
- The Registry Operator may notify the TMCH of successful Sunrise Registrations once the corresponding Sunrise Registration has been made.
- The Registry Operator may also publish all or any portion of a Sunrise Registration online (e.g., via WHOIS).

- **The Registry's Rights:**

The Registry Operator shall be entitled, but not obligated, to reject a Sunrise Registration or to delete, revoke, cancel, suspend or transfer a Sunrise Registration:

- To enforce Registry policies and ICANN Requirements, each as amended from time to time;
- That is not accompanied by complete and accurate information, or where required, information is not updated or corrected, as required by ICANN Requirements or Registry policies;
- To protect the integrity and stability of the operation or management of the Registry;
- To comply with applicable laws, regulations, policies or any holding, order, or decision by a competent court or administrative authority, or any dispute resolution service provider the Registry may retain to oversee the arbitration and mediation of disputes;
- To establish, assert, or defend the legal rights of the Registry or a third party, or to avoid any actual or potential civil or criminal liability on the part of or damage to the Registry or its affiliates, subsidiaries, contracted parties, officers, directors, representatives, employees, contractors, and stockholders;

- To correct mistakes made by the Registry or any Registrar in connection with a Sunrise Registration;
- If the Registry receives notice that the SMD File is under dispute; or
- As otherwise provided in the Registrar terms and conditions or Registry-Registrar agreement.